



**Order under Section 69
Residential Tenancies Act, 2006**

Citation: Guestville Apartments Inc v Eugenio, 2025 ONLTB 94970

Date: 2025-12-10

File Number: LTB-L-072286-25

In the matter of: 311, 80 GUESTVILLE AVE
YORK ON M6N4N3

Between: Guestville Apartments Inc

Landlord

And

Jose Eugenio

Tenant

Guestville Apartments Inc (the 'Landlord') applied for an order to terminate the tenancy and evict Jose Eugenio (the 'Tenant') because:

- the Tenant, another occupant of the rental unit or someone the Tenant permitted in the residential complex has substantially interfered with the reasonable enjoyment or lawful right, privilege or interest of the Landlord or another tenant

This application was heard by videoconference on November 13, 2025 at 9:32 a.m.

Only the Landlord's agent Stavros Lytis attended the hearing.

As of 9:32 a.m., the Tenant was not present or represented at the hearing although properly served with notice of this hearing by the LTB. There was no record of a request to adjourn the hearing. As a result, the hearing proceeded with only the Landlord's evidence.

Determinations:

1. As explained below, the Landlord has proven on a balance of probabilities the grounds for termination of the tenancy. However, I find it would not be unfair to grant relief from eviction provided that the Tenant meet the conditions set out in the order.
2. The Tenant was in possession of the rental unit on the date the application was filed.

N5 Notice of Termination

3. On July 30, 2025, the Landlord gave the Tenant an N5 notice of termination. The notice of termination alleged the Tenant substantially interfered with the Landlord's rights and

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privileges, or interests by installing and maintaining a portable air conditioning unit contrary to the rules of the residential complex.

Landlord's evidence

4. The Landlord's agent submitted the residential complex has a policy against portable air conditioning units being installed in rental units. Further, that on June 26, 2025 the Landlord learned that the Tenant had mounted a portable air conditioning unit contrary to the rules of the residential complex, then on July 11, 2025 visually confirmed the unit was mounted in the rental unit, and on July 14, 2025 the Landlord issued a written letter to the Tenant advising the Tenant to remove the unit.
5. The Landlord's agent further submitted that the Tenant had not voided the notice as despite the written letter, and notice of termination, the air conditioning unit was never removed. Entered into evidence were photographs and a video taken by the Landlord's agent dated November 4, 2025, showing the presence of the air conditioning unit in the rental unit.

Analysis

6. Section 64 of the *Residential Tenancies Act, 2006* (the 'Act') states:

64 (1) A landlord may give a tenant notice of termination of the tenancy if the conduct of the tenant, another occupant of the rental unit or a person permitted in the residential complex by the tenant is such that it substantially interferes with the reasonable enjoyment of the residential complex for all usual purposes by the landlord or another tenant or substantially interferes with another lawful right, privilege or interest of the landlord or another tenant.

(3) The notice of termination under subsection (1) is void if the tenant, within seven days after receiving the notice, stops the conduct or activity or corrects the omission.

7. The Tenant has an opportunity to void the N5 notice in accordance with section 64(3) of *the Act* by correcting the identified problems within seven days of the date the notice was served. In this case, the seven-day period begins the day following service of the N5 notice, from July 31, 2025 to August 6, 2025.

8. I find the Tenant took no corrective action during the statutory voiding period; therefore, the Tenant did not void the N5 notice of termination in accordance with section 64(3) of *the Act*.
9. The Board has recognized that violations of the rules and policies of the residential complex, particularly those dealing with safety, maintenance, electrical load, or building management may constitute an interference of the landlord's lawful rights or interests. In this case, I find the Landlord provided credible evidence that established that the rule exists, the Tenant was made aware of it through a written warning on July 14, 2025, and that the Tenant refused to comply through documentary evidence dated November 4, 2025 showing that the unit remained installed. The Landlord's agent testified the portable units

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are prohibited because they are contrary to City of Toronto by-laws and practically may create risks relating to electrical load and maintenance obligations. I accept that in this case, enforcing building wide rules relating to HVAC and electrical equipment is part of the Landlord's lawful right and interest to manage the residential complex. Accordingly, I find that the Tenant's continued installation and refusal to remove the portable air conditioning unit prevents the Landlord from exercising their lawful privileges or interests within the meaning of section 64 of *the Act*.

10. However, I find that this conduct is specific and capable of being easily remedied. The Landlord led no evidence of imminent risk or harm that would justify an immediate termination; therefore, I find in this case a conditional order is appropriate. If the Tenant removes the unit within the specified time, the tenancy may continue.
11. The Landlord incurred costs of \$186.00 for filing the application and is entitled to reimbursement of those costs.

It is ordered that:

1. The tenancy between the Landlord and the Tenant continues if the Tenant meets the conditions set out below.
2. The Tenant shall remove the portable air conditioning unit from the rental unit by January 15, 2026.
3. If the Tenant fails to comply with the conditions set out in paragraph 2 of this order, the Landlord may apply under section 78 of the *Residential Tenancies Act, 2006* (the 'Act') for an order terminating the tenancy and evicting the Tenant. The Landlord must make the application within 30 days of a breach of a condition. This application is made to the LTB without notice to the Tenant.
4. The Tenant shall pay to the Landlord \$186.00 for the cost of filing the application.

5. The total amount the Tenant must pay the Landlord is \$186.00.
6. If the Tenant does not pay the Landlord the full amount owing on or before January 15, 2026, the Tenant will start to owe interest. This will be simple interest calculated from January 16, 2026 at 4.00% annually on the balance outstanding.

December 10, 2025

Date Issued

Greg Witt

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.